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IN THE FOURTH JUDICIAL DISTRICT COURT, PROVO DEPARTMENT
IN AND FOR THE COUNTY OF UTAH, STATE OF UTAH

STATE OF UTAH, Plaintiff, vs. TYLER JAMES ROBINSON, Defendant.	REPLY IN SUPPORT OF MOTION TO CLASSIFY DEFENDANT'S MOTION FILED JANUARY 9, 2026 AS PRIVATE Case No. 251403576 Honorable Tony F. Graf, Jr.
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Defendant, Tyler James Robinson, by and through undersigned counsel hereby replies to the *News Media's Memorandum Opposing Motion to Classify Defendant's Motion Filed January 9, 2026*. See Dkt. 302. Mr. Robinson maintains that the motion and exhibits filed January 9, 2026 should be classified as private. However, should this Court require a public filing, Mr. Robinson requests that this Court permit Mr. Robinson to file a redacted pleading without the evidentiary report attached as an exhibit, and to allow Mr. Robinson to redact descriptions and quotes from the evidentiary exhibit within the motion.

I. The Initial Classification of the Motion Was Proper under Rule 4-202.04(3)(A) which Requires the Court to Deny Access Pending Further Proceedings.

The News Media objects to the initial classification of Mr. Robinson's motion as private, claiming it was "improper." However, as noted in the motion to classify, pursuant to Rule 4-202.04(3)(A), upon the filing of a motion, "the court must deny access to the record until the court enters an order." Dkt 285, at 2. Accordingly, Mr. Robinson requested that the Court classify the Motion filed January 9, 2026 and exhibits as private "pending any further order of the Court." *Id.* This is precisely what the Court did in signing the order on January 12, 2026, nothing more. Indeed, the Order states that the motion and exhibits are classified as private "pending further order from the Court." Dkt. 295, at 2.

Nothing about the order prevents the media from seeking the relief afforded under Utah Rule of Judicial Administration 4-202.04 and this Court's *Order Denying the Media's Request to Intervene, and Standing Order for Rule 4-202.04 Notice of Motions for Classification*, issued December 29, 2025. See Dkt 267. The notice order requires the parties to serve the News Media with all closure motions and motions to reclassify court records, and for that party to file proof of service with the Court. *Id.* at 2. Thereafter,

If members of the media intend to object to a closure motion and request a closure hearing, such objections and requests must be filed within seven (7) days of receiving notice. To promote judicial economy and to eliminate unnecessary hearings, the court may decline to hold a closure hearing if no hearing is requested.

Id. Mr. Robinson’s counsel interprets this provision to mean that the News Media has seven days to object to closure of a record (or hearing), and the result of such objection may result in “further order from the Court.” Dkt. 295, at 2.

The News Media has filed an objection but has not requested a hearing.

II. Disclosure of the Potentially Inadmissible Evidence Has a Substantial Probability of Prejudicing Mr. Robinson’s Right to a Fair Trial.

The News Media is correct that Mr. Robinson’s request for classification of the motion is based on overwhelming concern that making public the evidence attached and described therein has a substantial probability of prejudicing Mr. Robinson’s right to a fair trial. At this early stage of proceedings, and prior to any adversarial testing, disclosure of initial evidentiary reports will only serve to insert potentially inadmissible evidence into the public narratives saturating the coverage of Mr. Robinson’s case and runs a high risk of tainting the potential jury pool.

First, although the News Media provides the Court citation to the Supreme Court case of *Richmond Newspapers v. Virginia*, 448 U.S. 555 (1980) addressing the closure of a criminal *jury trial*, the News Media fails to acknowledge and meaningfully engage in the Court’s preceding decision in *Gannett Co. v. DePasquale*, 443 U.S. 368 (1979) that is more analogous to the circumstances presented here. The *Richmond* Court emphasized the difference between the postures of *Gannett* and *Richmond*, stating:

In [*Gannett*], the Court was not required to decide whether a right of access to *trials*, as distinguished from hearings on *pre trial* motions, was constitutionally guaranteed. The Court held that the Sixth Amendment’s guarantee to the accused of a public trial gave neither the public nor the press an enforceable right of access to a *pre trial* suppression hearing.

Id. at 564 (emphasis in original). In addition, the *Gannett* Court found regarding access to a pretrial suppression hearing, as summarized by the Utah Supreme Court, “even if the First Amendment gave a right of access it was ‘outweighed’ by the defendant’s right to a fair trial in that case, since there was a reasonable probability of prejudice if the transcript of a hearing whose purpose was to screen out unreliable or illegally obtained evidence was made public in advance of the trial.” *Kearns-Tribune Corp., Publisher of Salt Lake Tribune v. Lewis*, 685 P.2d 515, 519 (Utah 1984) (quoting *Gannett*, 443 U.S. at 392-93).¹

Consistent with this precedent and instructive here, in *State v. Archuleta*, the Utah Supreme Court found the trial court correctly barred public access to materials filed in connection with a preliminary hearing, despite a presumptive right of access. 857 P.2d 234, 239 (Utah 1993). The *Archuleta* Court noted that “the documents sought contained sensitive and inflammatory information that was not necessarily accurate or admissible.” *Id.* After reviewing the record and the documents at issue, the *Archuleta* Court concluded that “the documents contain inadmissible and possibly inaccurate information, publication of which would not serve defendants’ interests in receiving a fair trial” and “[g]iven the documents’ inflammatory and speculative nature, . . . a substantial probability exists that alternatives to closure would not have adequately protected defendants’ right to a fair trial.” *Id.*

Finally, at issue here is an initial evidentiary report that has not yet been subject to adversarial testing and may ultimately be inadmissible. *See, e.g.*, Utah R. Evid. 702; *Daubert v.*

¹ The News Media also cites to *Waller v. Georgia*, 467 U.S. 39 (1984). Dkt. 302, at 4. This case is not dispositive. The issue before the Court in *Waller* was the closure of a suppression hearing over a defendant’s objection—a claim was grounded in the defendant’s Sixth Amendment right to a public trial. *Id.* at 40-41. While suppression hearings may have significance in the course of a case, *Waller* does not inform the question of whether restricting public access of an initial evidentiary report that has not yet, but may very well be, at issue in a future evidentiary hearing.

Merrell Dow Pharmaceuticals, Inc., 509 U.S. 579 (1993). The filing of the report was necessary to ensure the preservation of evidence consistent with the parties' stipulated order, signed November 4, 2025, requiring Mr. Robinson to file an objection when put on notice that evidence may be tested or examined in a way that is "potentially destructive." Dkt. 161, at 3. In order to articulate and make an adequate record of the objection to the testing/examination of the evidence, it was necessary to include the evidentiary report and apply the appropriate legal standards governing the destruction of evidence issue to the specific facts contained in the report. Mr. Robinson cannot and should not be forced to choose between making a full and complete record of a significant issue and preserving his right to a fair trial.

Moreover, defense efforts to exclude this evidence as unreliable would be futile if the evidence has already reached the jury pool through pretrial publicity. As aptly put by the Tenth Circuit:

Neither tradition nor logic supports public access to inadmissible evidence. Access to inadmissible evidence is not necessary to understand the suppression hearing, so long as the public is able to understand the circumstances that gave rise to the decision to suppress. Moreover, suppressed evidence, by definition, will not be admissible at trial, and thus press access to such evidence will not play a significant positive role in the functioning of the criminal process, as that evidence is simply irrelevant to the process. On the contrary, disclosure of such evidence would play a negative role in the functioning of the criminal process, by exposing the public generally, as well as potential jurors, to incriminating evidence that the law has determined may not be used to support a conviction.

United States v. McVeigh, 119 F.3d 806, 813 (10th Cir. 1997) (per curiam).

The Court should also be dissuaded of the notion that bias in the potential jury pool created by disclosure of evidence that may ultimately be deemed inadmissible will dissipate with time in this particular case. We no longer live in times where cases like Mr. Robinson's are subject to a 24-hour news cycle, with each article or post easily replaced in the minds of the

public by a new story of the day. The appetite for this case is voracious and each new development, in or out of court proceedings, does not become an archived story, rather, it becomes a part of ongoing narratives that live and breathe on social media and the internet generally. The evidence at issue here will undoubtedly become part of any number of narratives and conspiracy theories pervading the public sphere and be repeated, *ad nauseum*, up to and even during Mr. Robinson's trial, regardless of this Court's admissibility determinations.

The only way to prevent potentially inadmissible evidence from becoming part of the narratives that lead to bias and tainting of the jury pool is to not file the potentially inadmissible evidence publicly.

CONCLUSION

Mr. Robinson maintains that the filing and exhibit should be maintained as private. Should this Court determine that some of the motion may be public, Mr. Robinson asks this Court to allow Mr. Robinson to redact quotations and specific facts derived from the report and to file it without the evidentiary exhibit.

RESPECTFULLY SUBMITTED this 22nd day of January, 2026.

/s/ Kathryn N. Nester
Kathryn N. Nester

/s/Richard G. Novak
Richard G. Novak

/s/ Michael N. Burt
Michael N. Burt

/s/ Staci Visser
Staci Visser

Attorneys for Defendant, Tyler James Robinson

CERTIFICATE OF SERVICE

This is to certify that a true and correct copy of the foregoing was served via the Court's electronic filing system on the 22nd day of January, 2026, which served all attorneys of record.

Further, undersigned certifies that a copy of this pleading was served by email on the same date upon counsel for the media entities previously identified as *Deseret News, et al.*, see Docket Entry 150, namely:

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And by email upon on counsel for the media entities identified as *The Salt Lake Tribune, et al.*, see Docket Entry 164, namely:

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/s/ Staci Visser
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